

United States District Court for the District of South Carolina

Piedmont Booksellers Guild v. City of Norvale

Case No. SYN-DSC-26-CV-0107 City of Norvale's Motion to Stay Preliminary Injunction
Pending Appeal Filed January 26, 2026

The City of Norvale moves in this Court for a stay of the January 23 preliminary injunction pending interlocutory appeal. Seeking relief here first permits the Court that entered the injunction to address its immediate administration and creates a focused record should the City later request relief from the court of appeals. The City intends to file a timely notice under 28 U.S.C. § 1292(a)(1). It asks for a stay before the Guild's February 14 fair requires final staffing, traffic, and permit decisions.

The motion is limited to interim operation of the injunction. The City does not ask the Court to resolve the complaint finally or to treat the anticipated appeal as suspending the order automatically. It recognizes that an injunction remains enforceable unless stayed or modified. The City therefore applies the familiar stay factors: likelihood of success, irreparable injury absent a stay, injury to the opposing party, and the public interest. Those considerations overlap with, but are not identical to, the preliminary-relief analysis already performed.

The January 23 order restrains enforcement of the Paid-Speaker Permit Ordinance against the Guild's 2026 fairs while leaving neutral safety requirements generally available. The City respectfully submits that the operative line does not identify which portions of the combined ordinance, application, and fee schedule may be administered, how staff should process amendments, or what event-specific showing permits a condition. No security amount is stated. Those defects create an independent likelihood of corrective relief under Rule 65 even if some interim protection remains warranted.

The City is likely to succeed on its contention that the ordinance is content neutral. Coverage turns on a scheduled speaker's compensation and the recurring-event setting, not on a subject or viewpoint. The required topic line may be a neutral description such as “author reading and questions.” The legislative record, pilot decisions, and declarations contain no ideological classification. The district court recognized the City's logistical interests but concluded the speaker-based mechanism probably burdened more expression than necessary.

That conclusion understates the operational distinction between dispersed sales and an announced presentation. A timed event invites listeners to gather, then move toward signing tables, exits, or transit stops. Advance names, formats, and times help staff compare simultaneous reservations, preserve the service lane, and arrange coverage. Compensation is an administrable indicator of a presentation the organizer has scheduled and controls. It is not a judgment about the worth of the speech.

The City also has a substantial appellate argument that the order treated conceivable alternatives as immediately available substitutes without resolving who would collect reliable schedule information or pay incremental review costs. The stipulated chart identifies options, but it does not establish that every alternative would provide equivalent notice or be less burdensome in every case. Narrow tailoring does not require the least restrictive means. A reviewing court could conclude that the district court discounted the ordinance's fit before a full merits record was developed.

The fee analysis likewise presents a serious issue. The \$240 event charge covers intake, site coordination, and a written determination; the \$45 assessment addresses the additional schedule review associated with each paid presentation. Actual staff time varies, and the existing pilot history is short, but the record does not show that the schedule raises general revenue or finances unrelated programs. The Guild's six-author example produces \$510, an amount the City acknowledges is meaningful to a small organizer. Meaningful expense is not by itself proof that the amount exceeds administrative costs.

The advance-disclosure provisions also permit a narrower construction than the injunction assumes. An applicant may describe a topic at a high level, and staff does not evaluate ideological acceptability. A proposed substitution may be reviewed after the forty-five-day deadline when time and operational effects permit. The City agrees the ordinance does not guarantee every late change, but a guarantee is different from a constitutional requirement that administrators ignore timing and resource consequences.

At a minimum, the likely Rule 65(c) and (d) issues justify a temporary stay long enough for appellate consideration. The order neither fixes security nor explains why none is required. Its general reference to “the Paid-Speaker Permit Ordinance” does not distinguish the base fee, speaker surcharge, scheduling disclosures, written-reasons provisions, or neutral safety conditions. City staff should not face contempt risk while guessing which administrative steps remain lawful.

Absent a stay, the City will suffer institutional and operational injury that cannot be repaired fully after appeal. The February 14 fair approaches. Staffing assignments, adjacent reservations, curb access, sanitation, and emergency coordination must be settled before the event. If employees process the Guild outside the ordinance and the City later prevails, the lost planning period cannot be restored. Recalculating a fee after the event would not recreate information or personnel that should have been arranged beforehand.

The injury is not merely the abstract frustration of a policy. The injunction directs municipal officers how to administer a recurring-event system on an active public site. Ambiguity about permitted questions and conditions can cause inconsistent treatment among organizers. Employees may either avoid lawful safeguards for fear of violating the order or impose a measure that the Guild characterizes as forbidden. A short stay would preserve a single, reviewable framework while the City seeks expedited appellate guidance.

The City does not rely on speculative violence. The Guild's history is peaceful, with two minor medical calls and ordinary congestion. Its point is that emergency access and pedestrian management are prospective responsibilities. The absence of a prior serious event does not make an unplanned conflict reparable. Nor does the City contend that every paid author creates the same risk. The permit process is designed to identify the event-specific circumstances before they mature.

The requested stay would not impose irreparable injury on the Guild if paired with prompt and concrete administration. The City proposes to complete review of the February 14 materials within three business days of any final submission, accept a neutral topic description, and consider substitutions that do not materially alter attendance, location, time, or format. It will provide written reasons for any condition. The Guild may continue planning and advertising programs already identified.

The City recognizes the Guild's concern that a delayed or excluded literary appearance cannot be recreated. That concern supports expedition, not an order that leaves the governing obligations uncertain. The anticipated appeal can be briefed promptly because the record is discrete and the hearing transcript is complete. A short administrative stay would permit a stay panel to evaluate the same documents before the event while minimizing disruption.

If the Court concludes that a complete stay would burden the Guild excessively, it may stay only the portions of the injunction that prevent collection of logistical information and enforcement of documented event-specific conditions, while temporarily suspending the per-speaker fee. That alternative would preserve the City's most immediate safety functions and reduce the Guild's claimed economic harm. The City offers it without conceding that any portion of the ordinance is unconstitutional.

The public interest includes protected expression and safe, predictable access to public property. The City does not claim that one interest automatically defeats the other. Cedar Commons serves transit riders, pedestrians, nearby businesses, community organizers, and the Guild's audience. A stay with expedited review would preserve the elected policy briefly while a reviewing court examines whether its burdens fit those shared uses.

The public also benefits from orders that give regulated parties and officials precise notice. The January 23 order's broad restraint, coupled with no stated security decision, invites collateral disputes over administration rather than focusing the constitutional question. Correcting those terms before the recurring series proceeds would reduce uncertainty for every participant. A stay would not authorize viewpoint discrimination, suspension of written reasons, or disregard of ordinary constitutional limits.

The City's proposed order would require status reports, preserve all permit records, and permit the Guild to return immediately if staff denies or materially conditions the February 14 event. Those safeguards ensure that interim relief does not become an unreviewable barrier. They also create a concrete record if an actual operational dispute arises rather than asking the courts to decide from hypothetical extremes.

For these reasons, the City requests that the Court stay the January 23 preliminary injunction pending disposition of the City's interlocutory appeal. Alternatively, it asks for a stay until the Fourth Circuit acts on a promptly filed motion, or for a partial stay that permits collection and use of neutral logistical information while suspending disputed speaker charges. The City will seek no retroactive payment for conduct undertaken in compliance with the existing order while a stay request is pending.

The City further requests a prompt ruling because the event calendar makes delay consequential to both parties. It proposes that the Guild respond by January 27 and that the matter be decided on the papers unless the Court requires argument. The complete preliminary-injunction record, including the January 19 transcript and January 23 opinion, is available electronically. No new evidentiary submission is necessary.

Nothing in this motion waives the City's right to challenge the injunction's constitutional reasoning, scope, duration, or security treatment. Nothing asks the Court to dissolve protection without notice. The motion presents the district-first request contemplated by appellate stay practice and supplies the reasons the City would rely on if further relief becomes necessary.

Respectfully submitted January 26, 2026, by counsel for the City of Norvale. Counsel certifies electronic service on the Piedmont Booksellers Guild and states that the parties conferred but could not agree on a stay. A proposed order accompanies the filing and identifies the requested duration, reporting obligations, and alternative partial relief.